APPELLATE COURT
OF THE
STATE OF CONNECTICUT

AC 47559, 47560, 47561

JOHN GIROLAMETTI, ET AL.
v.
CITY OF DANBURY ET AL.

BRIEF OF AMICUS CURIAE CONNECTICUT CONFERENCE OF MUNICIPALITIES

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With leave of the Appellate Court, Connecticut Conference of Municipalities (CCM) respectfully submits this brief of amicus curiae in support of appellant, the City of Danbury.[1]

I. Interest of amicus curiae

CCM is the largest nonpartisan organization of municipal leaders in Connecticut. Its membership represents nearly all of the 169 cities and towns in the State. One of its many purposes is to provide advocacy for member municipalities on issues of general concern, including through the submission of amicus briefs. CCM and its members have an interest in this appeal because the trial court's decision broadens the waiver of derivative sovereign immunity contained in General Statutes § 52-557n, with potentially devastating consequences for Connecticut's cities and towns.

II. Argument

A. The trial court's application of § 52-557n(b) conflicts with the statute's text, context, and purpose.

The trial court interpreted General Statutes §§ 52-557n(b)(7) and (8) to allow direct suit against both a municipalities and their employees for reckless conduct in connection with the issuance of permits and making of property inspections. This reading undercuts Connecticut's statutory tort scheme and conflicts with other statutory provisions.

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[1] No counsel for any party wrote this brief in whole or part and no party, or counsel to a party, contributed the cost of preparing or submitting this brief.

1. The trial court's application of § 52-557n defeats the statute's purpose of codifying governmental immunity with limited exceptions.

Section 557n was meant to codify governmental immunity with only certain limited exceptions. Thus, while § 557n(a)(1) generally permits municipal liability for negligence, § 557n(a)(2) specifically provides that municipalities "shall not be liable for damages" caused by "[a]cts or omissions of any employee, officer or agent which constitute criminal conduct, actual malice or wilful [sic] misconduct," or for "negligent acts or omissions which require the exercise of judgment or discretion." Id. Thus, § 52-557n(a) generally precludes municipalities from being held liable for their employees' discretionary conduct or for willful or malicious misconduct. Id.

Consistent with this background presumption, § 52-557n(b) specifically identifies ten categories of discretionary governmental activity for which municipalities and their employees generally cannot be held liable—all of which pertain to municipal responsibility over land use and development. See id. § 52-557n(b). These include §§ 557n(b)(7) and (8), which address the issuance of permits and other authorizations and the inspection of property. Within these categories, municipalities and municipal employees "shall not be liable for damages to person or property" unless their actions with respect to permitting or inspection "constitutes a reckless disregard for health or safety under all the relevant circumstances." Id. §§ 52-557n(b)(7), (8).

To be sure, the Supreme Court has recognized that a municipality can be held liable under § 52-557n(b)(8) when the failure to carry out inspections is the result of a municipal "policy or pattern," Williams v. Housing Auth. of the City of Bridgeport, 327 Conn. 338, 358 (2017). But here, the trial court permitted

Danbury to be held liable for the alleged failure its employees to properly review permit applications and conduct building inspections where was no allegation or evidence of a municipal policy or pattern. This constitutes a broad and untenable expansion of municipal liability, which could leave cash-strapped towns liable for catastrophic damages awards.

2. The trial court's application collapses the distinction between negligence and recklessness.

Under Connecticut law, reckless conduct is "highly unreasonable conduct, involving an extreme departure from ordinary care, in a situation where a high degree of danger is apparent." Maselli v. Reg'l Sch. Dist. No. 10, 198 Conn. App. 643, 663 (2020). Negligent conduct, by contrast, requires only a showing that a duty was breached in a manner that caused injury. Right v. Breen, 277 Conn. 364, 377 (2006). There is thus a "wide difference between negligence and a reckless disregard of the rights or safety of others." Di Teresi v. Stamford Health Sys., Inc., 142 Conn. App. 72, 91 (2013). Indeed, the distinction between the two is "a difference in kind rather than a mere continuum of severity." M & L Cons., Inc. v. Town of Darien, 2015 WL 671691, at *11 (Conn. Super. Ct. Feb. 2, 2015).

But here, the jury found recklessness on facts which do not come close to showing that Danbury and its building inspectors engaged in highly unreasonable conduct that constituted an extreme departure from ordinary care.

The facts put before the jury indicated that Plaintiffs designated Michael Horton Associates Inc. as the "design professional, in responsible charge" who was responsible for interfacing with the City building department. DA192. As part of the review process, City building officials reviewed a statement of special inspections, as required by the building code and examined a set of. DA193-201. City building officials also examined a set of drawings pertaining to the structural

engineering of the building (provided by Horton), as well as drawings of the pre-engineered part of the building provided by VP Buildings. The evidence also showed that Edward Schullery had numerous interactions with architect Russell Larabee to resolve various issues. The City conducted over 100 inspections during the construction phase of the project. DA216-25.

Even assuming that city employees made mistakes in this process, it is difficult to comprehend how this pattern of conduct could be deemed reckless as opposed to merely negligent. If affirmed, the judgment in this case would eliminate this important distinction and effectively permit municipalities and municipal employees to be held liable for negligent permitting and inspection, making Connecticut an unfortunate outlier among other states, the vast majority of which do not permit liability for negligent licensing or inspection. See PA27

3. The trial court's application effects a silent repeal of §§ 7-465(a) and 7-101a.

The trial court's interpretation of § 52-557n(a) squarely conflicts with the general policy laid out in Conn. Gen. Stat. § 7-465(a)—a policy which is echoed throughout Connecticut's municipal-liability statutes. Section 7-465(a) governs a municipality's "[a]ssumption of liability for damage caused by an employee," and provides that municipalities will assume liability for the actions of their employees only if that conduct is not "wilful or wanton." Id. This limitation is echoed in § 7-101a, which requires municipalities to indemnify employees for liability arising out of "alleged negligence," but not for "malicious, wanton or wilful act[s]."

It is well established under Connecticut law that "willful or wanton" conduct is the equivalent of reckless conduct. See Elliott v. City of Waterbury, 245 Conn. 385, 415 (1998) (willful, wanton, and reckless conduct are

"indistinguishable"); see also Northrup v. Witkowski, 175 Conn. App. 223, 248, (2017) ("Wanton misconduct is reckless misconduct"). Indeed, many statutes use the terms interchangeably in the context of indemnification. See, e.g., Conn. Gen. Stat. § 10-235(a) (requiring boards of education to indemnify employees except for "wanton, reckless, or malicious" conduct); id. § 19a-181a (requiring state to indemnify "any person certified as an emergency medical-services instructor," provided the instructor's actions were not "wanton, reckless or malicious").

Thus, the consistent theme throughout the General Statutes is that government entities are not liable for the "wanton," "willful," or "reckless" conduct of their employees. But the trial court's application of §§ 52-557n(b)(7) and (8) would effectively repeal §§ 7-465(a) and 7-101a in the crucial context of building permitting an inspection—an area that could expose municipalities to potentially crippling liability. This would violate "the rule disfavoring the implied repeal of a statute by the subsequent enactment of another statute." Amaral Bros., Inc. v. Dep't of Lab., 325 Conn. 72, 85 (2017). Accordingly this Court should adopt a harmonizing interpretation that prevents a statutory conflict.

B. Permitting direct municipal liability for recklessness in licensing and inspection would have devastating and perverse consequences for Connecticut municipalities.

The trial court's ruling, if allowed to stand, would impose onerous requirements on municipal building departments that are virtually impossible to meet. By law, city officials are entitled to rely on the analyses provided to them by structural engineers. DA63-66. That is just what Danbury did here. It also inspected the construction site more than 100 times. If Danbury can nevertheless be held liable for recklessness under the facts of this case, then all municipalities

will face a constant risk of potentially catastrophic liability any time a plaintiff can trace a construction defect back to the inspection or permitting process.

Connecticut municipalities are in no position to guard against this potential risk. They are required by law to enforce the State's building and construction codes, but have limited ability to raise sufficient revenue to provide for the type of oversight needed to escape liability under the reasoning implicit in the trial court's judgment. If the conduct in this case qualifies as reckless, then municipalities would have to exponentially increase their hiring and spending on permitting and inspection, effectively becoming insurers of private construction projects. Or, more likely, they will have to dramatically reduce their issuance of building permits in order to shield themselves from potentially crippling liability. This would stunt economic growth and exacerbate Connecticut's already severe housing shortage.

The scale of the liability municipalities will now have to backstop is staggering. Connecticut municipalities issued over 5,000 building permits in 2023, many of which concern projects valued in the six or seven figures. CCM conservatively estimates that the total value of these construction projects is well into the nine figures. According to its Building Department, in 2024 Danbury alone issued commercial building permits with an aggregate construction value in the mid-eight figures, with one project alone valued at over $30,000,000. The trial court's judgment, if affirmed, would suggest that municipalities could be responsible for these costs—as well as other potential economic and consequential damages—if plaintiffs are able to identify mistakes in the permitting or inspection processes.

Connecticut's cities and towns cannot afford to pay these types of judgments or to make the sorts of investments in hiring that would be necessary to avoid this exposure. Municipalities have no income tax power and their ability to

raise revenue through property taxes is severely limited by state law, which exempts nonprofits—including churches, universities and hospitals—from taxation. The trial court's judgment thus leaves Connecticut municipalities in an impossible situation—they must vastly increase their expenditures on building permitting and inspection in order to ferret out the possible failures of private contractors, while being severely limited in the means by which they can raise revenue.

At a minimum, the judgment in this case will encourage plaintiffs' lawyers to include municipalities as defendants in any significant construction case. This case provides a perfect template. Other than inspection in accordance with its long-established licensing regime, the city of Danbury had no involvement with the construction project at issue here. The parties, responsible for any alleged design and construction defects are private entities. Yet Danbury, despite its minimal involvement, has been left holding the bag on millions of dollars in liability. Allowing this verdict to stand would send a clear message to the plaintiffs' bar that the relevant municipality should always be added as a defendant in any case involving alleged construction defects.

Plaintiffs will now be on notice that every municipality in Connecticut can be forced to act as an insurer of last resort for any construction project requiring municipal approval and inspection. This will open a flood of litigation against municipalities. In fact, it may even increase the overall number of lawsuits filed, for plaintiffs will now be incentivized to file suit even when the private parties actually responsible for the loss are unable to pay. Previously, filing such a suit would not have been economically viable, but if a municipality can be forced to foot the bill that calculation would be turned on its head. This verdict would thus have the perverse effect of shielding private construction contractors for their shortcomings and shifting the cost to municipalities and Connecticut taxpayers.

C. The Court should clarify that municipalities may only be found directly liable for recklessness in licensing and inspection if there is a municipal policy or practice of ignoring a particular risk of harm.

These consequences can be avoided by imposing direct liability on municipalities only if there is a Monell-style policy that results in systematic reckless conduct on the part of the city. Such an interpretation is particularly warranted here, as § 52-557n(b)(7) and (8) both also impose liability for failure to act. It would be extraordinarily harsh to put municipalities on the hook for a single instance of an individual employee's failure to act.

That is especially so because Connecticut law does not uniformly recognize a cause of action for reckless failure to act. See, e.g., Pera v. Young Men's Christian Association of Greenwich, 2011 WL 3891042 (Conn. Sup. Ct. July 29, 2011) (granting motion to strike the plaintiff's recklessness count, holding that "the defendant's alleged passivity … due to the desire to avoid costs" associated with the removal of ice and snow from a parking lot was not sufficient to support a recklessness action); Jiminez v. American Steak House, LLC, 2010 WL 5030129 (Sup. Ct. Nov. 15, 2010) (striking recklessness count where defendant consciously chose not to inspect premises, make repairs, or warn customers of dangerous condition created by detached piece of dining booth). Liability should thus only be imposed when a municipality's actions or failure to act rise to the level of a policy that was adopted recklessly.

Such an interpretation is consistent with the Supreme Court's decision in Williams v. Housing Authority of the City of Bridgeport, 327 Conn. 338 (2017). When assessing whether a municipality could be held directly liable under (b)(8), the Supreme Court instructed that "whether the failure to inspect was an isolated

event or part of a policy or pattern" was a relevant consideration. Id. at 359. The Supreme Court further emphasized that "whether other municipalities or jurisdictions routinely neglect to carry out inspections of the type at issue" was another important factor. Id. at 359–60 (emphasis added). These are both relevant factors regarding whether a municipality has a defective policy that could subject it to liability.

This Court should therefore clarify that if §§ 52-557n(b)(7) and (8) impose direct liability on municipalities, they do so only when there is a citywide policy that meets the recklessness threshold.

III. Conclusion

The judgment below should be reversed. To the extent municipalities can ever be directly liable for recklessness, it should only be when there is evidence of a municipal policy or custom of ignoring a particular substantial risk of harm.

February 7, 2025
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By:
s/ Tadhg Dooley
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CERTIFICATIONS

The undersigned hereby certifies, pursuant to Connecticut Rule of Appellate Procedure § 67-2A, that:

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2. The brief and party appendix being filed with the appellate clerk are true and correct copies of the brief and party appendix that were submitted electronically pursuant to subsection (f) of this section;

3. The brief and party appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order, or case law, unless the brief is filed pursuant to § 79a-6;

4. The e-brief contains 2,399 words;

5. The brief complies with all provisions of this rule; and

6. No deviations from this rule were requested/approved.

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